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Post-Completion OPT

OPT is a privilege provided by the U. S. government to international students who desire to gain employment experience in their major field of study. Most students avail themselves of this privilege following completion of their program of study. However, OPT may also be used during a vacation period if a student intends to register for the following session, or part-time while school is in session.

International students interested in applying for this privilege should carefully read all instructions below and attend an OPT workshop before contacting the Office of International Student Services.

Eligibility

To be eligible for Post-Completion OPT:

- The student must have been enrolled full-time for one academic year preceding the OPT application.
- The student must be in F-1 status at the time of application.
- The student must be in the last 90 days of their academic program.
- US Citizenship and Immigration Services (USCIS) must receive an OPT application BEFORE the end of the official 60-day grace period.
- Students must attend an OPT Workshop prior to applying.

Explanations

International students who have completed at least one full academic year of study (two semesters) may engage in Optional Practical Training upon approval by USCIS. The application may be submitted up to 90 days prior to the completion of one academic year, but the authorization will be granted only from the date the student actually completes a full academic year.

OPT may be authorized for up to 12 months for each level of education. For example, a student pursuing a bachelor's degree may accumulate a total of 12 months OPT during and following completion of the degree. A master's degree student will become eligible for an additional 12 months following completion of one full academic year of study toward that degree.

Post-Completion OPT is full-time and may be authorized after completion of all course work, typically after graduation. In some situations it may be authorized prior to the completion of the thesis (for master's degree students).

We recommend that students apply online for the OPT STEM extension. In rare instances, a student may complete the Paper Application Process instead and mail their application to USCIS. Please contact your DSO for these instructions.

Dates of OPT Authorization

A student that desires to participate in OPT following completion of studies must apply prior to the completion of studies. The process may take from 2 to 3 months. Employment cannot begin until the [Employment Authorization Document](#) (EAD) is received.

It is not necessary for a student to already have a job offer in order to apply for OPT. However, once granted, OPT cannot be recovered if a job offer does not materialize. The employment must be directly related to the student's major field of study and must be appropriate for someone with the student's level of education.

Once the EAD has been received and employment has been obtained, students may travel with an endorsed I-20 form. If a student leaves the US

after completing the program of study but before receiving the EAD or obtaining employment, re-entry to the US will most probably be denied. Even with the EAD, a letter from the employer indicating that the student is expected to resume duties after a brief absence is recommended.

Online Application Process

1. Complete the **OPT Advisor's E-Form** (via [iStart](#)) which will be electronically signed by your academic advisor. Check UIS Self-Service account prior to submitting the E-Form – make sure your address and emergency contact are up to date, all holds have been removed, and you have completed your graduation application. Once your OPT Advisor E-Form has been submitted, a DSO will confirm your eligibility and schedule an OPT Appointment for you.
2. Create a [USCIS Online Account](#). We recommend using your personal email.
3. DSO will provide you with a new Form I-20 via mail or email with the OPT recommendation. Make sure to print and sign page 1 of your Form I-20. USCIS requires your original signature and you must retain original I-20 for your records.
4. **Gather and scan all required documents. See [I-765 Online Filing Evidence webpage](#).** We recommend using the [UIS ID Center](#) for the digital passport sized photo.
5. [File your I-765 Application for Employment Authorization Online](#). Click the blue "File Online" button next to the I-765 field.
6. DSO will assist you with any questions regarding the I-765 at your OPT Appointment. Do not submit until after your OPT Appointment. It is YOUR responsibility to submit your online application to USCIS within 30 days of the date your OPT was recommended (date on new Form I-20).

After Applying for OPT

Within two weeks of applying, you should receive a receipt notice (Form I-797) which includes a filing number and status information. This number can be used to [check your application status online at the USCIS website](#).

Approximately 90 days after USCIS receives your application, you should receive an approval message on the website. Allow for approximately 3 weeks for the Employment Authorization Document (EAD) to be mailed. If your EAD will be mailed to our office, we will contact you by email when your card arrives. You may only begin working after you have received your card AND your start date has been reached. Make sure all information is correct on your EAD, make copies for your records, and keep your EAD in a safe place. Information regarding corrections and replacements can be found on our [Employment Authorization Document](#) webpage.

Caution: students who apply for post-completion OPT and then don't actually graduate must contact ISS immediately in order to correct the I-20 and OPT application.

[Premium processing](#) is now available to F-1 students applying for OPT at a significantly higher cost.

Reporting Requirements

While you are not required to have a job offer to apply for OPT, you are only allowed 90 days of unemployment after your OPT start date. Unemployment days are calculated in SEVIS and you are required to update via the [SEVP Portal](#) within 10 days of your employment change or

update. You will receive an email regarding the SEVP Portal once your OPT is approved and after your OPT start date. The email will go to the email in SEVIS, which we recommend to be your personal email, as advised during OPT Appointment. You are also required to update your address within 10 days of moving following the [Address Update](#) procedures.

All practical training must relate to the student's "**major.**" OPT employment that is not directly related to the major area of study would be considered a status violation. F-1 students are responsible for providing a written "description of how their practical training opportunity relates to their major area of study", in addition to the following information:

- job title
- employer name
- major area of study
- whether full time or the average hours worked per week
- brief explanation of how the job is directly related to the student's studies

Student will receive their SEVP Portal information once their OPT is approved AND on or after their start date. Please note, if your site/client location differs from the employer's headquarters, please enter the site address (location you are physically working).

SEVP Portal

FAQs

What is OPT?



Optional practical training (OPT) is defined in the regulations as “temporary employment for practical training directly related to the student’s major area of study.”

Who can apply for OPT?



All students that have completed one full year of full-time study toward their current degree (and with the current SEVIS record) may apply for pre- or post-completion OPT. Only students that have completed a degree in one of the STEM majors are eligible for the 24-month STEM extension.

To be eligible for the [24-month STEM OPT extension](#), a student must be engaging in an unexpired authorized period of standard post-completion OPT that was granted on the basis of a bachelor’s, master’s, or doctoral degree listed in the DHS STEM Designated Degree Program List.

How is OPT related to the field of study?



OPT employment must be directly related to your major area of study. That is the purpose of OPT – to gain practical experience in the field of study. If you have more than one major within the current degree program, either field may be chosen.

When should an application for OPT be made?



The deadlines are as follows. The dates refer to limits on when the form I-765 can be received by the USCIS Service Center.

- **Pre-completion OPT** – Students who have not yet met the one full academic year requirement can file for pre-completion OPT no sooner than 90 days before meeting that requirement, provided the employment start date requested is on or after the date they meet the one full academic year requirement. Students who have already met the one academic year requirement may apply for pre-completion OPT up to 120 days in advance of the requested employment start date.
- **Standard post-completion OPT** – For standard post-completion OPT, the I-765 must be received to USCIS no sooner than 90 days before the program end date, and no later than 60 days after the program end date. In addition, the form I-765 in support of post-completion OPT must be received by USCIS no later than 30 days after the DSO submits the OPT recommendation to SEVIS.
- **STEM OPT extensions** – For the 24-month STEM extension of OPT, the I-765 must be filed before the student's current post-completion OPT employment authorization expires.

The adjudication process itself takes approximately 90 days, so you should apply for OPT at least 3 months before you plan to begin employment. In the case of post-completion OPT, it is possible to apply up to 60 days after the program end date, but the OPT work authorization date can be no later than 60 days after the program end date. Therefore, students applying late should expect to lose some of their OPT period due to the time required to adjudicate the application.

Students desiring to make use of the 24-month STEM extension must apply prior to the end of their regular OPT.

An applicant for pre-completion OPT can file a form I-765 “up to 90 days before being enrolled for one full academic year, provided that the period of employment will not start prior to the completion of the full academic year.” This would allow first-year students to obtain pre-completion OPT in the summer after their first year.

The application must also be received to USCIS within 30 days of the time the request is entered into the Student’s SEVIS record. The date will be on the form I-20 that is issued for the purpose of the I-765 application.

What are all these different OPTs (pre-completion, post-completion, STEM extension) about, and do they each require separate applications?



The answer to the second part of the question is “yes”, each OPT requires a separate application with all required documents, including a new form I-20, new photographs, and an additional fee.

Basically, pre-completion OPT is for part-time work to be done prior to graduation, post-completion is for full-time work done following graduation, and [the STEM extension](#) allows students majoring in some Science, Technology, Engineering, and Math programs to extend the full-time OPT for an additional 24 months.

Students who have completed all course work and are only working on their thesis/dissertation or equivalent may apply for either pre- or post-completion OPT and may work full-time on pre-completion OPT. There are advantages and disadvantages to each. Plan to discuss these options in detail with a DSO submitting your application.

More information regarding pre-completion OPT.

The [STEM extension](#) is only available to a [specific list of majors](#) (PDF). Although your degree may be related in some way to Science, Technology, Engineering or Math that does not mean that it is on that list. Check with a DSO to be sure. Further, there is no public list of employers registered with E-verify. You must work with the employer to find out if they are registered and in good standing with E-Verify.

What happens if I decide to transfer schools or begin a new program of study while on OPT?



If you transfer to a different school or begin a new program of study while your application is in requested or pending status, the application will be canceled. If your OPT has already been approved, it will end on the date your SEVIS record is released to the new school or you are registered for the new program.

What information is required in order to apply for OPT?



The application process is explained in detail on the OPT Webpage.

What if I cannot find a job or I lose my job after I start working?



You are allowed up to 90 days of unemployment during the regular post-completion OPT. If you are granted the 24-month STEM extension, an additional 60 days is added to this allowance for a total of 150 days

during the 36-month period. The count starts on the start date indicated on your Employment Authorization Document (EAD).

Once your allowance is exhausted, either because you have been unable to obtain employment or you have lost your job, your OPT automatically ends, and you must begin a new program of study, obtain a different visa status, or leave the country. There is no grace period for a student who violates F-1 status, including reaching the maximum unemployment period. Unemployment during pre-completion OPT has no effect on your status, but the time granted will be counted against your post-completion OPT allowance.

What kinds of work will count toward my employment obligation?



The following activities are considered allowable employment on both **pre-completion and standard post-completion OPT**, provided that the job is related to the student's program of study:

- **Regular paid employment** for at least 20 hours per week in a position directly related to the student's program of study.
- Students may work for multiple employers, as long as it is directly related to the student's program of study.
- **Payment by multiple short-term employers.** SEVP says that "Students, such as musicians and other performing artists may work for multiple short term employers (gigs). The student should maintain a list of all gigs, the dates and duration. If requested by DHS, students must be prepared to provide evidence showing a list of all gigs."

- **Work for hire.** SEVP says, "This is also commonly referred to as 1099 employment where an individual performs a service based on a contractual relationship rather than an employment relationship. If requested by DHS, students must be prepared to provide evidence showing the duration of the contract periods and the name and address of the contracting company."
- **Self-employed business owner.** SEVP says, "Students on OPT may start a business and be self-employed. In this situation, the student must work full time. The student must be able to prove that he or she has the proper business licenses and is actively engaged in a business related to the student's degree program."
- **Employment through an agency.** SEVP says, "Students on post-completion OPT must be able to provide evidence showing they worked an average of at least 20 hours per week while employed by the agency."
- **Volunteers or unpaid interns.** SEVP says, "Students may work as volunteers or unpaid interns, where this does not violate any labor laws. The work must be at least 20 hours per week for students on post-completion OPT. These students must be able to provide evidence from the employer that the student worked at least 20 hours per week during the period of employment."
- Note that a volunteer position or unpaid internship would be a valid option for someone who otherwise might not meet the minimum employment requirement.

How long can I work on OPT?



- The regular post-completion OPT allowance is 12 months for each degree level. You may work 12 months following completion of your bachelor's degree, another 12 after your master's and 12 more after completing your doctorate. However, any part-time, pre-completion OPT used during the qualifying degree program will count against that 12 month total at 50%. In other words, if you work 4 months of pre-completion OPT, you will only have 12 months remaining of post-completion OPT (4 months X 50% = 2 months; 12 months – 2 months = 10 months). The [24-month STEM extension](#) is added to whatever post-completion OPT remains after deduction the pre-completion amount. You must also begin your post-completion OPT within 60 days of your program end date. If you wait too late to apply, regardless of when your application is adjudicated, your EAD start date will be the 60th day following your program end date. So you could, in effect lose some of your work time and/or your unemployment allowance.
- Use of full-time CPT may also affect your OPT eligibility. If you use less than 12 months of full-time CPT, your OPT will not be affected. Part-time CPT does not affect your OPT at all. However, F-1 students who engage in an aggregate of 12 months or more of full-time curricular practical training at the same educational level become ineligible for optional practical training.

When can I start to work?



A student cannot begin OPT employment until the start date indicated on the EAD issued by USCIS.

For standard post-completion OPT, a student may not request a start date that is more than 60 days after the student's program end date. This restriction is related to the requirement that all standard post-completion OPT must be completed within 14 months of the completion of study. To enforce this, SEVIS will not accept an OPT recommendation with an employment start date that is more than 61 days beyond the program end date.

The end-date for post-completion OPT will be the earliest of:

- The requested end date
- The date on which the student's remaining allotment of OPT expires
- 14 months after the student's program end date

The practical consequence of these provisions is that the latest expiration date on a standard post-completion OPT EAD will be 14 months after the program end date. For students whose EADs begin shortly after the program end date, a full 12 months can easily fit into the 14 month window.

For students whose EADs are approved more than 60 days after the program end date, though, a full 12 months cannot fit into the 14 month window. In that case, the OPT period will be truncated, and the student will lose practical training time. Students should bear this in mind when deciding when to apply for OPT.

The employment authorization period for the [24-month OPT extension](#) begins on the day after the expiration of the initial post-completion OPT employment authorization and ends 24 months

thereafter, regardless of the date the actual extension is approved. A student who has applied for a STEM extension can continue working for up to 180 days beyond the expiration of the prior post-completion OPT EAD while the STEM extension application is pending.

What happens after I submit my application to the Service Center?



If USCIS approves the application, they will issue an EAD. If USCIS wants more information, they can send a request for evidence (RFE). If ineligibility is determined, USCIS should indicate the reason for denial in a written notice sent to the student. There is no formal appeal from a denial, but the student may file a motion to reopen or reconsider the decision, if such a motion has merit.

Students may anticipate variation in USCIS processing times for EADs.

- To find out what average USCIS processing times are, or check the status of a pending application for which you have a receipt number, use the [USCIS Case Status Service Online](#).
- If your application has been pending for more than 90 days, please contact the International Office.

Can I make changes to my OPT application after the request has been made in SEVIS and/or after the application has been sent to the Service Center?



Yes, but the answer varies somewhat depending upon how far along the process has advanced.

Once the information has been entered in SEVIS and your new form I-20 has been issued, you have only 30 days to submit the application. Prior to submitting the application, if you change your mind about applying or any of the information that has been submitted, just contact the DSO, request the change, get another form I-20, and submit that with the application.

If the application has already been submitted to USCIS, but has not yet been adjudicated, you must contact the Service Center directly to have the I-765 withdrawn. DHS regulations allow an application to be withdrawn "at any time until a decision is issued...However, a withdrawal may not be retracted," and DHS's "acknowledgement of a withdrawal may not be appealed."

The letter can be uploaded to your USCIS account and should include the following elements:

- Note "Re: I-765 Withdrawal" on the letter
- Include biographical information to identify the student, including name, date of birth, and SEVIS ID number
- Reference the receipt number for the I-765 application (from the form I-797 receipt notice); a copy of the receipt notice can also be helpful
- Specific request that the form I-765 application for Optional Practical Training be withdrawn
- Student's signature

If the withdrawal request is made by e-mail, the e-mail should include the

following elements:

- The subject line of the e-mail should read "I-765 Withdrawal"
- Include biographical information to identify the student, including name, date of birth, and SEVIS ID number
- Reference the receipt number for the I-765 application (from the form I-797 receipt notice)
- Specific request that the form I-765 application for Optional Practical Training be withdrawn
- The e-mail should be sent by the student to the DSO, who will then forward it to the Service Center.

If your request shows incorrect information, for example it still shows as "requested" when you have actually received a receipt notice and it should be showing as "pending", or it is showing as "pending" when you have already received your EAD and it should be showing as "approved", the DSO can request a correction so that your current form I-20 will print with the correct information.

If you decide that you no longer wish to use your OPT after the application has been approved (in order to save it until later), you may request to have the authorization withdrawn, but you will lose your fee.

What is the "cap-gap" extension, and how do I get it?



Students with pending or approved H-1B petitions are allowed to remain in F-1 status during the period of time when an F-1 student's status and work authorization would otherwise expire, and up to the start of their approved H-1B employment period. This is referred to as filling the "cap-gap," meaning the regulations provide a way of filling the "gap" between F-1 and H-1B status that might otherwise occur if F-1 status was not extended for qualifying students.

H-1B petitions that are timely filed for an eligible F-1 student that **request a change of status** to H-1B qualify for a cap-gap extension. When a receipt notice is received from USCIS regarding acceptance of the petition, then the SEVIS record is automatically updated to include the cap-gap benefit and you may, at that time, complete the **"Cap Gap I-20 Request" E-Form** via [iStart](#). You will also need to upload a copy of your receipt or approval notice. The Form I-20 will include an automatic extension of your OPT through April 1, which means you are authorized to remain in the U.S. and continue employment with an expired EAD.

During your cap-gap extension period, you are not advised to travel outside the US. See USCIS for additional information on the cap-gap extension:

[H-1B Cap-Gap Regulations](#)

May I work for more than one employer while on OPT?



Yes, you may work for more than one employer at a time, more than one following another, or even, under special circumstances, for yourself

as long as the employment qualifies under OPT standards. The STEM extension requires that all the employer(s) be enrolled in E-Verify.

How many hours per week may I / must I work while on OPT?



While on pre-completion OPT and completing course work, you must limit your employment to no more than 20 hours per week. Full-time employment can be requested for pre-completion OPT done during official school breaks, and for students who have completed all requirements for their degree except for thesis or dissertation (but these students must continue to make normal progress towards completing the thesis or dissertation required for their degree). For post-completion OPT, a student must be employed for at least 20 hours per week.

When can I start working?



For pre-completion OPT or regular post-completion OPT, work can begin only after receiving EAD issued by USCIS, and on or after the start date on the EAD. Students who have applied correctly and in a timely manner for the [24-month STEM extension](#) may continue working for up to 180 days while awaiting the arrival of their new EAD.

What do I need to report to the Office of International Student Services while I am on OPT?



While you are on OPT, you are still in F-1 student status and are responsible for reporting to the Office of International Student Services. While on OPT, updates on submitted via the SEVP Portal. While on OPT

STEM, you will need to follow the detailed reporting table on the OPT STEM webpage and report employer details every 6 month.

Changes in your name, address, employer or loss of employment must be reported within 10 days.

The employer of a student under extended OPT must report to the student's school DSO within 48 hours after the student leaves employment with that employer.

May I travel outside the U.S. while on OPT?



A student who has both an EAD for post-completion OPT and a job should not experience difficulty reentering the United States. If either of these two conditions is missing, then the student is assuming risk. Students with both a valid EAD and a job should carry with them a letter from the employer stating that the student is temporarily travelling abroad but will return to **resume** employment. Inclusion in the letter of the dates of the temporary absence may be helpful.

This does not apply to pre-completion OPT. There are no restrictions upon travel while on pre-completion OPT other than those applicable to all F-1 students. Students participating in the "cap-gap" extension may not travel and re-enter, since their EAD cards will have necessarily expired. Students participating in the STEM extension may travel even if they have not yet received their new EAD cards, but they must carry the receipt notice. Students with an expired visa may be able to obtain a visa renewal while travelling abroad, but they should also understand that they run a higher risk of denial.

How do I get from OPT (F-1) to H-1B?



You cannot apply directly for H-1B yourself. A prospective employer must apply for H-1B on your behalf. Once you find an employer willing to file the petition, encourage that employer to do so on April 1, the first day the applications can be filed. In recent years, all H-1B slots have been filled on the very first day.

If you are still in OPT when the application is filed, you will qualify for [the "cap-gap" extension](#) and will be allowed to continue working until your H-1B has been denied, or, if approved, until it takes effect on October 1. If your OPT has ended, but you are still in your 60-day grace period when the application is submitted, you cannot work, but you can remain in the US until the petition is denied, or if approved, until the H-1B becomes effective on October 1.

Be very careful with the H-1B application. If a company does not really plan to employ you, and/or you do not plan to work for them, do not allow that company to file an H-1B petition for you. At worst an employer who files a petition knowing that it will never employ you has committed fraud and perhaps involved you in the fraud. "Agencies" who file petitions for you hoping that they might eventually find work for you but knowing that they will "bench" you (place you in an "unproductive status"—which is prohibited by law) until then also violate the law and jeopardize your status. Some students on OPT seem to have fallen into the trap of allowing such petitions to be filed for them while they search for the job they really want. Don't make this mistake. It is a serious one.

When in doubt [consult an immigration attorney](#). The UIS Office of International Student Services is not authorized to provide guidance

related to H-1B petitions by outside organizations. H-1B petitions for UIS employees are handled by the [Office of International Programs](#).